I remember even things like books were not allowed. Some of us had some books, a few very expensive ones also, and magazines, and they would help us while away some time. But one day the superintendent ordered a *talaashi* [search] and they were all taken away. We cried when we saw them rotting outside in the rain.

There used to be a lot of fights – over stupid, petty things. You moved my wash, you stole my slippers, or you stepped on my blanket. The matrons were not allowed to talk to us and we were treated worse than animals.

Convict prisoners would gang up on new undertrials and make them do all their work and inflict physical and sexual abuse on them. The staff never intervened, and so these convicts could establish a master-and-slave relationship.

Joseph Obi, a Nigerian (arrested under the NDPS Act), educated in India and working as an engineer, reflected on the years he had spent as an undertrial:

I have seen very bad times here. The prisoners were beaten mercilessly. A youngster, sentenced to seven days on a passport case, was beaten to death. People would be thirsty and there would be no clean water. People were dying here, seriously, and no help came.

I didn't see the face of my earlier superintendent. We would all be locked up in our cells whenever he made a round. And the IG, oh, he would make one round or sometimes maybe two in one whole year.

Obviously, what Joseph Obi was referring to here was the harrowing time the prisoners had during the summer of 1991. Tihar faced an acute water shortage then and also an absolute non-availability of clean drinking water. Gastroenteritis and other waterborne diseases were rampant. There was no one to listen to the prisoners' plight. It was only when cases of prisoners' deaths started being reported to the authorities that the administration woke up.

'Of the approximately 9500 prisoners lodged in Tihar almost 90 per cent are undertrials,' revealed a particular superintendent in 1995. 'Sometimes the period spent in jail as undertrial is almost as much as, if not more than, the sentence would be if convicted. We have the case of an inmate (Ajay) who was arrested in 1983 for murder. And his trial still continues today.'

The very angry Joseph Obi burst out again: 'The courts want to try me. Okay try me. But for how long? 1991, 1992, 1993, 1994? Years of my precious life – it may not be so to the judge or to the police, but it is to me. Try me, I tell the court. If you have a case against me, show the evidence and convict me. Otherwise acquit me, release me! What will anybody gain by keeping me under trial for so many years?'

Saroj, a 28-year-old Indian woman, who ran a tea stall, had spent three years as an undertrial under the NDPS Act. She was also very angry but in her case her predicament led her to tears and she exclaimed between sobs: 'I have been here for three years. I go to court and am told to come back after six months. A new date is given, that's all. I say, if I have done wrong, then sentence me, if I have not then leave me. But why this way? I gave 4000 rupees to a lawyer to handle my case. I have not seen the man again. Even the public prosecutor asks for money. Today, I own only these clothes that cover my body.'

Forty-four-year-old Margo Nita, from Holland, was arrested at the Delhi airport under the NDPS Act on her very first visit to India and was an undertrial for four-and-a-half years. She expresses her bewilderment: 'This was my first visit to India and I don't know anyone. I have lawyer, but he cheat